

Sentencing and Execution of Criminal Offenses Act, 2017

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Criminal Offences (Sentencing and Execution) Act, 2074

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Amending Acts

1. Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075 2075.09.02
2. Act to Amend Certain Acts Relating to Criminal Offences and Criminal Procedure, 2079 2079.03.31

Act Number 38 of the Year 2074

An Act Made to Provide for Sentencing and Execution in Criminal Offences

Preamble: Whereas, it is desirable to make legal provisions relating to determining appropriate sentences for offenders who commit criminal offences and executing such sentences in order to create a just, peaceful and secure society and to maintain the interest and good conduct of the general public,

The Legislature-Parliament, pursuant to Sub-article (1) of Article 296 of the Constitution of Nepal, has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Criminal Offences (Sentencing and Execution) Act, 2074".

(2) Clauses (d), (e), (f) and (g) of Section 17 of this Act Amended by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075. Sections 22, 24, 25, 26, 27, 28, 29, 30, 31 and 49 shall commence from the date specified by the Government of Nepal by notification published in the Nepal Gazette, and other Sections shall commence from the 1st day of Bhadra of the year 2075. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Criminal Code" means the Amended by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075. Muluki Criminal Code, 2074.

(b) "Offender" means a person convicted of any offence by a court.

(c) "Law" means the law in force for the time being.

(d) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(e) "Probation Officer" means a Probation Officer appointed or designated pursuant to Section 49.

(f) "Probation and Parole Board" means the Probation and Parole Board pursuant to Section 38.

(g) "Parole Officer" means a Parole Officer appointed or designated pursuant to Section 49.

(h) "Criminal Procedure Code" means the Amended by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075.Muluki Criminal Procedure Code, 2074.

(i) "Committee" means the Sentencing Advisory Committee pursuant to Section 46. 3.

Application of the Act: (1) This Act shall apply in respect of determining sentences by a court for any offence and the execution thereof. (2) This Act shall not apply in the following circumstances:- (a) When sentencing for an offence relating to contempt of court, (b) Amended by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075.When sentencing in relation to proceedings for breach of privilege initiated by the Federal Parliament or Provincial Assembly, (c) When it is provided in any law that this Act shall not apply. Chapter-2 General Principles Relating to Sentencing 4. Provisions of Criminal Code and Criminal Procedure Code to apply: (1) This Act shall be implemented subject to the Criminal Code and the Criminal Procedure Code. (2) Words defined in the Criminal Code and the Criminal Procedure Code, if mentioned in this Act, shall have the same meaning as defined in those Codes. (3) The principles mentioned in the Criminal Code shall also apply to the implementation of this Act. 5. Lesser Sentence to apply: If, in respect of any offence, the sentence according to law at the time of determining the sentence is lesser than at the time the offence was committed, the sentence shall be determined so as to be the lesser sentence. 6. Sentence to be determined according to other law: If any law prescribes imprisonment of a specific term or a fine of a specific amount or a specific sentence for an offence, the offender of such offence shall be subjected to imprisonment, fine or sentence as per that law. 7. Sentencing to be done in accordance with this Act: Except for the circumstances mentioned in Section 6, sentencing for any offence shall be done in accordance with this Act. 8. Sentence to be determined after conviction: (1) A court shall determine the sentence for a person in respect of an offence only after such person has been convicted of that offence by the court according to law. Added by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075.Provided that, the sentence shall be determined for the offender at the time of conviction itself for the following offences: (a) Offences where a specific amount of imprisonment or fine is already stipulated in the existing law, (b) Offences punishable with imprisonment up to three years or a fine up to thirty thousand rupees, (c) Offences punishable with life imprisonment where a recommendation for a lesser sentence has been proposed pursuant to Sub-section (1ka) of Section 145 of the Criminal Procedure Code. (2) When determining the sentence pursuant to Sub-section (1), it shall be determined within thirty days of the conviction. 9.

Separate hearing to be conducted: (1) When determining the sentence for an offender pursuant to Section 8, it shall be determined after a separate hearing. Amended by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075.Provided that, a separate hearing shall not be required when determining the sentence in the case of offences mentioned in the proviso clause of Sub-section (1) of Section 8. (2) When conducting a hearing pursuant to Sub-section (1), except where the judge who convicted the offender has died, Amended by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075.retired, been appointed to a higher level court, is unable to perform the duties of that post for any reason, is no longer holding the post, or is unable to perform duties due to serious illness, the same judge shall, in any other circumstance, conduct the hearing and determine the sentence. 10. Sentence to be determined after hearing in open court: (1) Except for cases to be heard in camera according to law, the sentence for an offender shall be determined in open court. (2) When determining the sentence pursuant to Sub-section (1), it shall be done in the presence of the concerned offender or their legal practitioner. (3) Notwithstanding anything written in Sub-section (2), if it is not possible to produce the offender before the court due to security or public interest reasons, if the offender refuses to appear before the court, if the offender is absconding, or if the offender's legal practitioner is absent, there shall be no bar to determining the sentence under this Act. (4) An offender who cannot be

produced before the court pursuant to Sub-section (3) may be produced via audio-visual dialogue (video conference), and if so produced, it shall be deemed that the offender is present before the court for the purpose of this section. 11. Omitted by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075. Each sentence to be determined separately: (1) When determining the sentence for an offender who commits more than one offence in a single incident, it shall be considered that each offence is separate, and a separate sentence shall be determined for each. (2) If any offence is constituted by two or more acts, and any one of those acts separately constitutes a distinct offence, the sentence shall be only for the offence carrying the highest punishment. (3) If a single act constitutes distinct offences under different Acts, the sentence according to the Act under which the higher punishment is provided shall be executed. Provided that, when determining the sentence, a separate sentence shall be specified for each offence.

Explanation: For the purpose of this section, imprisonment and fine shall be deemed to be separate punishments and shall be executed separately. 12. Order to prepare pre-sentence report: (1) Before determining the sentence for an offence punishable with imprisonment for more than three years or a fine exceeding thirty thousand rupees, the court may, if it deems necessary, order a Probation Officer or Parole Officer to prepare a pre-sentence report concerning the offender. (2) Upon receiving an order pursuant to Sub-section (1), the Probation Officer or Parole Officer shall prepare a report mentioning the following matters concerning the offender:- (a) The personal, social and cultural background of the offender, (b) The circumstances at the time of committing the offence, (c) The conduct of the offender before committing the offence, (d) The age of the offender, (e) Other matters deemed necessary by the Probation Officer or Parole Officer. (3) After the report pursuant to Sub-section (2) is prepared, the Probation Officer or Parole Officer shall submit such report to the court. (4) After receiving the report pursuant to Sub-section (3), the court shall provide such report to the concerned government attorney, the offender and their legal practitioner, and if the offender is a child, to their guardian. (5) After receiving the report pursuant to Sub-section (4), such government attorney, offender, guardian or legal practitioner may submit their views regarding the same to the court. (6) Notwithstanding anything written elsewhere in this section, if a Probation Officer or Parole Officer is not designated or appointed, the court shall order the legal practitioners of the plaintiff and the defendant to prepare the report pursuant to Sub-section (1). (7) After receiving the order pursuant to Sub-section (6), such legal practitioner shall prepare such report and submit it to the court. 13. Purpose of sentencing to be considered: The court shall determine the sentence considering any or all of the following purposes:- (a) To deter the offender or other persons from committing offences, (b) To protect society or the community, (c) To provide justice including compensation to the victim, (d) To assist in rehabilitating or reforming the offender in society, (e) To isolate the offender from society, (f) To make the offender feel remorse for their act and realize that harm or loss has been caused to the victim or community, (g) To denounce conduct prohibited by law. 14.

Matters to be considered when determining sentence: The court shall determine the sentence considering the following matters:- (a) The sentence must not be disproportionately greater than the seriousness of the offence and the degree of guilt of the offender, (b) The sentence must not be harsher than necessary to achieve the purpose of sentencing, (c) The sentence must not be inconsistent or unequal with the sentence previously given to another offender for an offence committed under similar circumstances, (d) When sentencing for more than one offence or when sentencing an offender already serving a sentence for another offence, the total sentence must not be excessive or disproportionate, (e) If other penalties appear sufficient in proportion to the offence, imprisonment shall not be imposed. 15. Bases for determining sentence: (1) When determining a sentence under this Act, it shall be done on the following bases:- (a) The seriousness of the offence and the degree of guilt of the offender, (b) The circumstances at the time of committing the

offence, Added by the Act to Amend Certain Acts Relating to Criminal Offences and Criminal Procedure, 2079.(b1) If the offence is under Section 192ka or 219 of the Muluki Criminal Code, 2074, the physical or mental suffering caused to the victim by such offence, (c) Aggravating or mitigating circumstances, (d) The conduct and past activities of the offender, (e) The purpose of sentencing mentioned in Section 13. (2) When determining a sentence pursuant to Sub-section (1), the sentence shall be determined as follows:- (a) Imprisonment for offenders committing heinous or serious nature offences, (b) Reform and rehabilitation of the child when sentencing a child, (c) An additional sentence double the sentence for the subsequent offence for a repeat offender, (d) Imprisonment for an offender who poses a danger to society or the community, (e) One and a half times the sentence for the offence for an offender who commits an offence by misusing the position or office while holding a position or office in any government office or public or organized institution. 16.

Matters to be considered when sentencing a child: (1) When sentencing a child, the following matters shall also be considered:- (a) The best interests of the child, (b) The seriousness of the offence and the degree of guilt, (c) The personal circumstances of the child, Explanation: For the purpose of this clause, "personal circumstances" means matters including the age, education, family situation, social status of the child, the type of offence, the harm or loss caused by the offence, and the purpose of committing the offence. (d) The compensation proposed to be given to the victim, (e) Remorse for the offence, (f) The desire to live a good and useful life. (2) When sentencing a child who has not completed sixteen years of age, imprisonment shall not be imposed except for a heinous offence, serious offence, or a repeated commission of an offence. 17. Matters to be specified when determining sentence: When determining a sentence under this Act, the following matters shall be specified in the judgment or order:- (a) The reason for the sentence, (b) When determining a sentence of a fine, the amount of fine to be paid by the offender, the date by which the fine must be paid, if payable in installments, such matter, and the imprisonment that may result for non-payment of the fine, (c) When determining a sentence of imprisonment, the term of imprisonment, the date of being in custody, the date of completion of the sentence, (d) If an order for community service is made, the type, duration, time of service, and the sentence that may result for not performing the service, (e) When determining a sentence to be served in a reform home or rehabilitation centre, the period to be stayed in such home or centre, the conditions to be observed, and the sentence that may result for violating such conditions, (f) Whether the offender can be released on parole or not, (g) If imprisonment is suspended, the period of suspension, (h) If compensation is to be paid, the amount of compensation, the period for payment, the method, and the sentence that may result for non-payment, (i) In case the sentence for a child is suspended with conditions pursuant to Sub-section (5) of Section 24, the sentence that may result for violating such conditions, (j) Other necessary matters the court deems appropriate. Added by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075.17ka.

Specifying lesser sentence and submitting opinion: (1) If the accused in a case where life imprisonment is required by existing law has confessed to committing the offence in court and such confession appears true from the evidence on file, and while giving the sentence of life imprisonment, if considering the circumstances at the time of committing the offence, the judge deems it excessive in the interest of justice and considers it appropriate to give a lesser sentence, the judge may pass a judgment with an opinion stating the reasons therefor. (2) An opinion together with the record shall be submitted within thirty-five days to the appellate court, along with a proposal for the sentence to be given to the offender pursuant to Sub-section (1). (3) If the appellate court also determines, in respect of the matter for which the opinion was submitted pursuant to Sub-section (2), that a lesser sentence should be given, the opinion shall be submitted to the Supreme Court. Chapter-3 Provisions Relating to Fine 18. Basis for determining sentence of fine: (1) When determining a

sentence of fine for an offence, in addition to other matters mentioned in this Act, the nature of such offence and the maximum and minimum limit of the fine shall be considered. (2) When determining a fine pursuant to Sub-section (1), the following matters shall also be considered:- (a) The financial status and income-earning capacity of the offender, (b) The financial harm or loss caused to other persons by the offence committed by the offender, (c) The benefit obtained by the offender or their family from the offence committed by the offender, (d) The impact on the family dependent on the offender for livelihood due to the fine, (e) The amount of compensation to be paid to the victim, (f) The liability that may fall on the government due to non-payment of the fine, (g) If the offender is an organized institution, the financial status and transactions of such institution, (h) If an amount is to be deposited in the Victim Relief Fund, such amount. Explanation: For the purpose of this clause, "Victim Relief Fund" means the Victim Relief Fund pursuant to Section 48. (3) When determining a fine pursuant to Sub-section (1), if the value of the property lost or damage is known, the fine shall be determined based on such value. 19.

Fine to be determined without affecting compensation: When imposing a fine pursuant to Section 18, if the offender is also required to pay compensation to the victim of the offence, the fine shall not be imposed in such a way that the offender is unable to pay such compensation. 20. Fine to be paid immediately: (1) The fine imposed under this Chapter shall be paid immediately by the offender. (2) Notwithstanding anything written in Sub-section (1), if such offender is unable to pay such fine immediately and provides property as security therefore, the court may order the fine to be paid in a maximum of three installments within one year. 21. Fine to be determined so that each offender bears the fine: When determining a fine for more than one offender in an offence, it shall be determined so that each offender pays the fine according to the degree of their involvement in the offence. Chapter-4 Provisions Relating to Community Service 22.

Order for community service may be given: (1) If, considering the offence committed by an offender sentenced to imprisonment for up to six months, their age, conduct, circumstances at the time of committing the offence, the manner adopted while committing the offence, it does not appear appropriate to keep them in prison, or after completing a term of imprisonment deemed appropriate by the court for such offence, the court may order the offender to perform community service for the remaining period. (2) The court shall order community service only if the offender agrees to perform the community service. (3) For the purpose of this section, the following work shall be considered community service:- (a) Performing public work without remuneration, (b) Providing service in a hospital, old age home, or orphanage without remuneration, (c) Performing work related to environmental protection without remuneration, (d) Teaching or providing service in a public or community school without remuneration, (e) Providing or receiving sports training without remuneration, (f) Working in any charitable organizations without remuneration, (g) Attending therapeutic or reformatory organizations designated by the court and performing work as prescribed by such organization. (4) When issuing an order for community service pursuant to Sub-section (1), the order shall be issued for the offender to perform any work mentioned in Sub-section (3) for the same period as the term of imprisonment or the remaining period of imprisonment to be served by the offender. (5) When determining the period pursuant to Sub-section (4), the time the offender must work per day shall also be specified. (6) When issuing an order for community service pursuant to Sub-section (1), the court shall also specify the conditions to be observed by the offender. (7) If the offender complies with the conditions pursuant to Sub-section (6) and performs community service pursuant to Sub-section (3), the sentence of imprisonment shall be deemed to have been served. (8) When performing community service, the offender must perform the service under the supervision of a Probation Officer or Parole Officer designated by the Probation and Parole Board. (9) If an offender fails to perform community service as per the order made under this section, or fails to comply with the conditions pursuant to Sub-section (6), or if it comes to notice that the offender had previously committed

an offence after the order for community service, or commits another offence during that period, the court shall cancel the order made pursuant to Sub-section (1). (10) After the order is cancelled pursuant to Sub-section (9), such offender shall serve the imprisonment imposed or the remaining imprisonment to be served by staying in prison. Chapter-5 Provisions Relating to Imprisonment 23.

Imprisonment to be imposed if other penalties are insufficient: Except where otherwise provided in this Act, when sentencing an offender, imprisonment shall be imposed if a fine and community service are insufficient.

24. Imprisonment may be suspended: (1) If an offender sentenced to imprisonment for less than one year has committed the offence for the first time and, considering the offence committed, their age, conduct, circumstances at the time of committing the offence, the manner adopted while committing the offence, it does not appear appropriate to keep them in prison, the court may suspend the immediate execution of such imprisonment. (2) Amended by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075. When suspending imprisonment pursuant to Sub-section (1), the suspension may be for up to three years from the date the sentence of imprisonment was determined. (3) Notwithstanding anything written in Sub-section (1), the Amended by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075. imprisonment of an offender, other than a child convicted of the following offences, shall not be suspended:- (a) Homicide, Added by the Act to Amend Certain Acts Relating to Criminal Offences and Criminal Procedure, 2079. (a1) Killing, dismembering, or causing physical injury using acid or other flammable substances, (b) Rape, (c) Human trafficking and transportation, (d) Arms, ammunition and explosives, (e) Corruption, (f) Taking hostage or kidnapping, (g) Robbery, (h) Counterfeit currency or counterfeit stamps, (i) Foreign exchange, (j) Transportation and dealing of narcotic drugs, (k) Relating to ancient monuments, (l) Relating to forests and wildlife, (m) Organized crime, (n) Money laundering, (o) Relating to torture or cruel, ruthless, inhuman or degrading treatment, (p) Crimes against humanity. (4) When issuing an order suspending imprisonment pursuant to Sub-section (1), the order shall be issued stipulating Amended by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075. conditions for the offender to perform the following work during the suspension period:- (a) To perform any public work without remuneration, (b) Amended by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075. To assist the victim in any work, if the victim consents, (c) Not to do any act or engage in any conduct mentioned in such order, (d) Not to go outside their residence or any specific place, (e) Omitted by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075 (f) To remain within a specified territorial limit set by the court, (g) To stay at a treatment and rehabilitation centre, (h) Not to meet a specific person. (5) Notwithstanding anything written in Sub-section (4), when suspending the sentence for a child pursuant to Sub-section (1), considering their age and circumstances at the time of committing the offence, with or without imposing conditions, the following decisions may be made:- (a) To have any family member or guardian advise and educate regarding good human conduct, (b) To have service-providing organizations or persons orient the child, (c) To provide individual, group or family psychosocial counselling services, (d) To place the child under the guardianship of a family member, guardian, school, or service-providing person or institution for a specified period, subject to compliance with prescribed conditions under their supervision. (6) If the offender complies with the matters mentioned in the order pursuant to Sub-section (4) during the suspension period, the imprisonment determined pursuant to Sub-section (1) shall be deemed to have been served. (7) If the offender violates the order pursuant to Sub-section (4), the court shall cancel the order made pursuant to Sub-section (1). (8) After the order is cancelled pursuant to Sub-section (7), such offender shall serve the entire sentence of imprisonment by staying in prison.

25. Sending to a reform home: (1) If, considering the offence committed by an offender sentenced to imprisonment of two years or less than two years, their age, conduct, circumstances at the time of committing

the offence, the manner adopted while committing the offence, it appears appropriate to keep them in a reform home instead of sending them to prison, the court may, upon the recommendation of a Probation Officer, send them to a reform home.

(2) Notwithstanding anything written in Sub-section (1), an offender committing an offence mentioned in Sub-section (3) of Section 24 shall not be sent to such a reform home.

(3) When sending an offender to a reform home pursuant to Sub-section (1), the conditions to be observed by them as determined by the Probation and Parole Board shall also be specified.

(4) If an offender serves the term of imprisonment in a reform home while complying with the conditions pursuant to Sub-section (3), they shall be deemed to have served such term by staying in prison.

(5) Notwithstanding anything written elsewhere in this section, if an offender kept in a reform home does not show improvement in conduct, fails to comply with the conditions pursuant to Sub-section (3), or commits an offence punishable with imprisonment during that period, they shall serve the entire term of imprisonment under this section in prison. 26. Sending to a rehabilitation centre: (1) If, considering the age, circumstances at the time of committing the offence of an offender using narcotic drugs, an offender suffering from physical or mental weakness, or other similar offenders, it appears appropriate to send them to a rehabilitation centre instead of sending them to prison, the court may, upon the recommendation of a Probation Officer, send such offender to a rehabilitation centre.

Explanation: For the purpose of this section, "rehabilitation centre" means an institution established with the objective of providing treatment and rehabilitation services to offenders addicted to drugs or other substances, or suffering from physical or mental weakness.

(2) Notwithstanding anything written in Sub-section (1), an offender committing an offence mentioned in Sub-section (3) of Section 24 shall not be sent to a rehabilitation centre.

(3) When sending an offender to a rehabilitation centre pursuant to Sub-section (1), the conditions to be observed by them shall also be specified.

(4) If an offender serves the term of imprisonment in a rehabilitation centre while complying with the conditions pursuant to Sub-section (3), they shall be deemed to have served the term of imprisonment.

(5) Notwithstanding anything written elsewhere in this section, if an offender kept in a rehabilitation centre does not show improvement in conduct, fails to comply with the conditions pursuant to Sub-section (3), or commits an offence punishable with imprisonment during that period, they shall serve the entire term of imprisonment under this section in prison. 27. Imprisonment may be served only on weekends or at night: (1) If, considering the offence committed by an offender sentenced to imprisonment up to one year, their age, the seriousness of the offence, the manner of committing the offence, and their conduct, it does not appear appropriate to keep them in regular imprisonment, the court may, stating the reasons therefor, determine the sentence requiring the offender to stay in prison only on the final day of the week or only during nighttime on a daily basis.

(2) Notwithstanding anything written in Sub-section (1), an offender committing an offence mentioned in Sub-section (3) of Section 24 shall not be given a sentence under this section.

(3) When determining a sentence pursuant to Sub-section (1), the court may specify conditions to be complied with by the offender.

(4) If an offender kept in prison pursuant to Sub-section (1) complies with the conditions pursuant to Sub-section (3) and serves such period, they shall be deemed to have served such imprisonment by staying in prison.

(5) If an offender kept in prison pursuant to Sub-section (1) fails to comply with the conditions of Sub-section (3) or commits an offence punishable with imprisonment during such period, they shall serve the entire term of imprisonment imposed on them by staying in prison. 28. Keeping in an open prison: (1) An inmate who has served two-thirds of the term of imprisonment and has good conduct may, upon the recommendation of the prison chief, be ordered by the judge of the concerned district court to be kept in an open prison.

Explanation: For the purpose of this section, "open prison" means any place designated by the Government of Nepal where the inmate can go outside the place where they are kept at designated times to perform work.

(2) When sending to an open prison pursuant to Sub-section (1), the conditions to be observed by them shall be specified. (2ka) Added by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075. (2ka) If an offender kept in an open prison pursuant to Sub-section (1) complies with the conditions pursuant to Sub-section (2) and serves such period, they shall be deemed to have served such imprisonment by staying in the open prison. (3) If an inmate sent to an open prison pursuant to Sub-section (1) fails to comply with the conditions pursuant to Sub-section (2) or commits an offence punishable with imprisonment during such period, they shall serve the remaining sentence of imprisonment imposed on them by staying in prison. 29. Placing on parole: (1) An offender who has been sentenced to imprisonment for more than one year and has served two-thirds of the term of imprisonment and has good conduct may, upon the recommendation of the concerned Amended by the Act to Amend Certain Nepal Acts Relating to the Civil Code, 2075. Probation and Parole Board, be ordered by the judge of the District Court to be placed on parole. Provided that the following offenders shall not be placed on parole: (a) Sentenced to life imprisonment, (b) Sentenced in a corruption offence, (c) Sentenced in a rape offence, Added by the Act to Amend Certain Acts Relating to Criminal Offences and Criminal Procedure, 2079. (c1) Sentenced for killing, dismembering, or causing physical injury using acid or other flammable substances or other lethal chemical substances, (d) Sentenced in an offence relating to human trafficking and transportation, (e) Sentenced in an offence relating to organized crime, (f) Sentenced in an offence relating to money laundering, (g) Sentenced in an offence relating to torture or cruel, ruthless, inhuman or degrading treatment, (h) Sentenced in an offence relating to crimes against humanity, (i) Sentenced in an offence against the state.

Explanation: For the purpose of this section, "parole" means a situation where an inmate who has served two-thirds of the term of imprisonment imposed is permitted to live in society under the supervision of a Parole Officer, subject to compliance with prescribed conditions for the remaining period.

(2) When issuing an order pursuant to Sub-section (1), the conditions determined by the Probation and Parole Board to be observed by such offender during the parole period shall also be specified.

(3) The Parole Officer shall monitor whether the conditions pursuant to Sub-section (2) are complied with or not by the concerned offender.

(4) If an offender on parole pursuant to Sub-section (1) complies with the conditions pursuant to Sub-section (2), the sentence of imprisonment imposed on them shall be deemed to have been served.

(5) If an offender on parole pursuant to Sub-section (1) fails to comply with the conditions pursuant to Sub-section (2) or commits an offence punishable with imprisonment during such period, they shall serve the remaining sentence of imprisonment imposed on them by staying in prison.

(6) Other provisions relating to parole shall be as prescribed. 30. Socialization to be provided: (1) Notwithstanding anything mentioned in this Act or other laws, an offender who has been sentenced to imprisonment for more than one year, is serving the sentence, and has good conduct, may be released from the prison on a monthly or daily basis by the prison for the following work, six months prior to the completion of their sentence term:-

- (a) Family reunification,
- (b) Establishing social and cultural relations,
- (c) Social integration and rehabilitation,
- (d) Engaging in business or employment,
- (e) Undertaking skill-based or employment-oriented training.

(2) When releasing from prison pursuant to Sub-section (1), the conditions to be observed by such offender shall also be specified.

(3) When releasing pursuant to Sub-section (1), the period and time to be spent on such work shall also be specified.

(4) A person released pursuant to Sub-section (1) shall submit a report weekly to the concerned prison regarding the work they have done.

(5) If a person released pursuant to Sub-section (1) fails to fulfill the conditions mentioned in Sub-section (2) or commits any offence during such period, they shall again stay in prison and serve the remaining term of imprisonment. 31.

Engaging in physical labour in lieu of imprisonment: (1) An offender who is over eighteen years of age, physically fit, and has been sentenced to imprisonment for three years or more than three years, may, if they wish, be engaged by the prison in physical labour for public works. (2) For every three days of labour performed by an offender engaged in physical labour for public works pursuant to Sub-section (1), 47.

Powers, Duties and Functions of the Committee: (1) The powers, duties and functions of the Committee shall be as follows:- (a) To develop standards to determine the appropriate limit of punishment for the offender according to the severity of the offense, (b) To conduct study and research regarding the prevailing sentencing policy and to submit suggestions to the Government of Nepal for reform, (c) To provide opinions, advice and consultation to the Government of Nepal regarding the punishment to be imposed in relation to offenses of a particular nature, (d) To collect and maintain updated records of offenders, analyze them and provide suggestions regarding sentencing, (e) To submit suggestions to the Government of Nepal if any reform appears necessary in the prevailing law relating to sentencing. (2) The Committee shall itself determine the procedures necessary for the conduct of its work and proceedings. (3) The Committee may, as necessary, constitute sub-committees to assist in its work and proceedings. (4) The terms of reference, procedures, and other necessary matters of a sub-committee constituted pursuant to sub-section (3) shall be as prescribed by the Committee. 48. Victim Relief Fund to be Established: (1) A fund named Victim Relief Fund shall be established to provide added by the Act to Amend Some Acts Relating to Criminal Offenses and Criminal Procedure, 2079. medical treatment, interim compensation and relief to victims of offenses. (2) The Government of Nepal shall deposit fifty percent of the amount realized as fines pursuant to a court verdict or the amount paid by an offender liable to imprisonment under the Penal Code as a fine in lieu of imprisonment, into the Fund established pursuant to sub-section (1). (3) In addition to the amount deposited pursuant to sub-section (2), an amount provided by law or an amount received from the Government of Nepal or any other source shall also be deposited into the Fund pursuant to sub-section (1). (4) The operation of the

Fund pursuant to sub-section (1), classification of victims, the basis for the amount of relief to be provided to victims from the Fund, the limit of such amount and other procedures relating to the distribution process shall be as prescribed. 49.